Review

Reviewed Work(s): Gaining Access: Congress and the Farm Lobby, 1919-1981 by John Mark Hansen

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ism" quickly recognized, however, that an opportunistic reliance on state constitutions could not succeed. If they wanted to develop an independent body of state civil liberties law, they would have to ground it in the distinctive language, principles, and history of state constitutions.

This has proved a daunting task. In interpreting the U.S. Constitution, one can draw upon a rich historical record, an abundance of legal precedent, and a wealth of scholarly commentary. In contrast, state constitutional interpreters have often found the historical record scanty, the precedents scattered or unhelpful, and the legal commentary virtually nonexistent. This collection of essays, written primarily by historians and legal scholars, originated as an attempt to alleviate these problems.

This is not to say that this volume promotes a particular constitutional agenda. Morton Horwitz cautions his fellow contributors about "roaming through history looking for one's friends" (p. 148); but the warning seems unnecessary. If anything, professional suspicion of "law office history" leads to an excess of caution. *Toward a Usable Past* will disappoint readers seeking definitive interpretations of state constitutional provisions. However, there are other uses of the past.

The narrowest function of constitutional history is to provide a context for understanding important cases. Several essays in this volume serve this function. Mary Dudziak traces the controversy over birth control in Connecticut prior to *Griswold*, arguing that the state's ban on the distribution and use of contraceptives indeed limited their availability. Morgan Kousser chronicles legal developments regarding segregation in Louisiana prior to *Plessy* and in Kansas prior to *Brown*. Charles Ogletree examines the treatment of the Supreme Court's jury discrimination cases in state courts. While these case studies have some interest, they are not theoretically grounded and do not permit generalizations.

A second function of constitutional history is to clarify changes in constitutional interpretation over time. The essays in this volume focus less on substantive changes than on changes in interpretive approaches. Although state judges have, since the mid–nineteenth century, emphasized textualism and "strict construction" in interpreting state constitutions, three essays reveal a wider range of interpretive traditions in the states. Ellen Peters demonstrates that earlier judges looked to the common law to clarify constitutional meaning, and Suzanna Sherry shows how judges employed standards of "natural justice" in protecting rights. H. Jefferson Powell analyzes the different understandings of judicial review among Virginia judges a decade before *Marbury*.

Perhaps the most valuable function of constitutional history, however, is to illuminate how changes in legal culture have affected the substance and interpretation of constitutions. The several essays analyzing state constitutions in terms of legal and political culture are among the strongest in the volume. Donald Lutz, James Henretta, and Peter Onuf examine the influence of republicanism on state constitutions. Their emphasis on political participation and on the inculcation of virtue underscores the distinctiveness of state constitutional politics for almost a century after independence. Lawrence Friedman's excellent essay analyzes how a concern about "the dangerous classes" during the late nineteenth century influenced the interpretation of state criminal justice guarantees and discouraged the development of new protections for the rights of the accused.

The danger with an edited collection, however, is that some important questions will not be directly addressed by any of the authors. That seems to have occurred in this volume. Most of the essays assume without examination that the similarities in state constitutional development are more important than the differences. Although some essays recognize that the constitutional agenda in the states during the nation's first century differed from the federal constitutional agenda, no essay systematically considers whether such differences continue to exist. Finally, no essay considers whether constitutional history can provide a "usable past" for state constitutional interpreters.

Nevertheless, *Toward a Usable Past* is an important book. The first volume devoted to state constitutional history in recent years, it demonstrates both the importance of the enterprise and how much work remains to be done.

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Gaining Access: Congress and the Farm Lobby, 1919–1981. By John Mark Hansen. Chicago: University of Chicago Press, 1991. 265p. $38.00 cloth, $15.95 paper.

To what extent and under what conditions do interest groups influence congressional policymaking? Probably no other question elicits as much fascination and consternation from the American public and scholars of American politics. John Mark Hansen's first book, *Gaining Access*, develops and illustrates a theory of access to account for the variable influence of farm lobbies on agricultural policymaking in the U.S. Congress from 1919–1981.

In general, "interest group access results from congressional strategies for dealing with electoral uncertainty" (p. 5). Assuming that reelection is the primary goal of lawmakers, Hansen treats interest group access to the policymaking process as a decision that legislators make in order to obtain the information necessary to secure that goal.

The influence of lobbyists is a function of the degree to which legislators grant lobbyists both access and privileged consideration to the policymaking process. Access is granted (1) "when legislators judge that interest groups enjoy competitive advantage over rival informants" and (2) "when they expect the conditions that maintain competitive advantage to recur" (p. 215). Used repeatedly throughout the work, the term, *competitive advantage*, means "an interpretation of the advice that helped legislators most in their past election," while *recurrence* means "a prediction that the advice will help legislators in their future elections" (p. 6). Access is thus something decided by and for political elites (p. 3).

Though interest groups compete with parties and policy entrepreneurs for access to members of Congress, they have a number of advantages in this struggle for congressional consideration: "First, they provide information and propaganda more efficiently than their rivals. Second, they promote the electoral aims of their congressional clients more effectively than their competitors" (p. 103). As to the classic trade-off between parties and interest groups, Hansen concludes that "strengthening political parties will not overcome the biases and

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inefficiencies of pressure politics," since "parties cannot absorb the social conflicts that otherwise find their outlets in the pressure system" (pp. 226–27).

Hansen's is not however simply a theory of interest group access. Rather, it is a more general theory of how access to congressional policymaking is determined and influence achieved by any individual or group seeking to bring a demand for authoritative action to the attention of the governing regime. This is a key strength to the book, even if its implications, especially for normative democratic theory, are not fully explored by the author.

Gaining Access is not without a few shortcomings. To begin, some scholars may find Hansen's theory difficult (though not impossible) to falsify. Since there are few objective measures of competitive advantage or recurrence, the reader must accept the author's interpretation of how both were interpreted by lawmakers at the relevant time. If lawmakers continued to grant access because they were misinterpreting the competitive advantage of farm lobbies and the recurrence of farm lobby issues, there's no way to know if access resulted from a misinterpretation on the part of lawmakers or from the traditional "iron triangle" explanations of agricultural policy.

The explanatory power of Hansen's theory of access is ultimately dependent upon a theory of macro agenda building to explain why certain issues become and remain salient for government officials and the polity. Patterns of access, observes Hansen, change as (1) issue salience changes, (2) the contentiousness of issues changes, and (3) elections prove informants right or wrong (p. 105). Beyond noting the "circumstances that create competitive advantage" and "guarantee recurrence," such as economic development, industrialization, population growth, and migration (p. 102), a systematic explanation of how the macro political agenda is created and how it shapes the policymaking process is not provided, limiting the theory to explanations based on the micro electoral calculations of incumbent politicians.

The theory's applicability is also limited by its arena of derivation. Many important studies of interest group politics have been based upon the politics of agricultural policymaking. Yet policies and the politics they engendered are not created equal. Notwithstanding Hansen's illustration that the theory is applicable across time and space to other issue arenas (pp. 217–22), agricultural policy may be distinctive as an election issue, providing greater empirical support for the theory than would another policy. Not only may policies determine politics within the governing apparatus of the state (to borrow Theodore Lowi's influential observation), but certain policies, like agriculture, may better solidify the electoral connection that links interest groups to lawmakers than do others.

Finally, Hansen's theory "works" so long as its underlying assumption, that members of Congress are "single-minded seekers of reelection," is the prevailing norm. Challenge this assumption, and the foundations of the theory begin to crumble. Lawmakers not primarily motivated by reelection may grant access to address important exigencies, rather than to "be on the right side of an issue in the next election" (p. 17). Studies increasingly show that reelection may not be the primary motive of national legislators. The level of public-spirited behavior is important for understanding the results of American policymaking, as are values and ideas. These may be more determinative of policy outcomes than the self-interested pursuit of reelection.

Notwithstanding these criticisms, *Gaining Access* should be taken very seriously as an informative and theoretically suggestive contribution to the study of congressional policymaking and the politics of interests. Hansen's theory of access will become a familiar feature in future studies of interest group politics, and also merits attention in studies of political parties, policy entrepreneurship, social movements, and political consultancy. The theory's widespread diffusion will establish the boundaries of its applicability as it continues to expand our knowledge of how political power is distributed in the American regime.

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Is Anyone Responsible? How Television Frames Political Issues. By Shanto Iyengar. Chicago: University of Chicago Press, 1991. 195p. $19.95.

This book extends Iyengar's earlier work with Donald Kinder, *News That Matters* (1987), which explored the agenda-setting role of television news. The first book refined the work of McCombs, Shaw, and others and broadened it to include framing effects. The concept of framing refers to "subtle alterations in the statement or presentation of judgment and choice problems, and the term 'framing effect' refers to changes in decision outcomes resulting from these alterations" (p. 11).

The research reported in *Is Anyone Responsible?* examines two ways in which television news frames issues: the episodic and the thematic. The episodic frame is the more prevalent one. It ordinarily takes the form of an event-based news report. An example would be the depiction of the terrorism issue in the context of an Irish Republican Army bombing in Northern Ireland. The thematic frame provides a broader perspective; it reports the issue in the context of "collective outcomes, public policy debates, or historical trends" (p. 18). An example would be a news story that discusses the terrorism issue against the backdrop of the historical bitterness between Northern Ireland's Protestants and Catholics.

On the basis of experimental research, Iyengar concludes that episodic framing on television encourages viewers to assign the blame for society's problems to individuals, rather than to social and political institutions, such as Congress or political parties. Thematic framing is concluded to have the opposite effect. Because television news emphasizes episodic framing, says Iyengar, it deflects the blame for problems from government, resulting in a weakening of political accountability—hence the book's title.

Iyengar's experiments were based on paired groups of participants: one group was shown a videotape that included an episodic news report on a particular issue problem and the second group was shown a thematic report on the same problem. The issues of crime, terrorism, poverty, unemployment, racial inequality, and the Iran–Contra affair were included in the experiments. After their exposure to a twenty-minute videotape, which contained seven news stories, including the story that was subject to experimental manipulation, participants completed a post-test questionnaire that included open-ended questions about the causes and treatment of the problem at issue. Responses were categorized as

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